

Sudhir Sharma Son Of Mr. Bajrang Lal ... vs The Chief Secretary on 22 February, 2021

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

S.B. Civil Writ Petition No. 1187/2021

Sudhir Sharma Son Of Mr. Bajrang Lal Sharma, Aged About 36
Years, 20, Mayur Vihar Jagatpura, Malviya Nagar, Jaipur
(Rajasthan)

---Petitioner

Versus

1. The Chief Secretary, The State Government Of Rajasthan
The State Secretariat, Jan Path, Jaipur 302005
(Rajasthan)
2. The Jaipur Vidyut Vitran Nigam Limited, Through Its
Managing Director Vidyut Bhawan, Jyoti Nagar Jaipur
302005 (Rajasthan)
3. Chief Personnel Officer, The Jaipur Vidyut Vitran Nigam
Limited Vidyut Bhawan Jan Path, Jaipur 302005
(Rajasthan)
4. Archana Vyas, Commercial Assistant Ii Posted And
Working At The Jaipur Vidyut Vitran Nigam Limited Vidyut
Bhawan Jan Path, Jaipur 302005 (Rajasthan) Resident Of
Plot 19, Mahesh Colony Ii, Behind Power House,
Jagatpura, Jaipur 302017 (Rajasthan)

---Respondents

For Petitioner(s) : Mr. Hans Kumar Sharma
For Respondent(s) :

HON'BLE MR. JUSTICE SANJEEV PRAKASH SHARMA Order 22/02/2021

1. The estranged husband has preferred this writ petition against ex-wife-respondent No.4 levelling allegations against her that she was not eligible for appointment and has therefore prayed to carry out a swift inquiring of the testimonials of all the candidates who got employment and recover the amount paid in (2 of 5) [CW-1187/2021] the form of salary to the respondent No.4 and also grant modest compensation of Rs.2,00,000/- to the petitioner.

2. Learned counsel for the petitioner submits that a divorce decree had been granted by the Civil Court dated 23.01.2020 and an appeal was preferred by the respondent No.4 before this Court which is pending. While the Appeal No.300/2018 is pending, the respondent No. 4 applied and has been appointed as a Commercial Assistant Grade-II in the divorcee quota. Thus, he submits that since appeal was pending, the respondent No.4 cannot be treated to be a divorcee and her

appointment under the said divorcee quota was illegal.

3. Learned counsel for the petitioner further submits that he moved an application under the Right to Information Act for receiving information relating to the respondent No. 4 which was not released. It is further stated that in the statement made before the Family Court, respondent No.4 had stated of having given dowry of about Rs.20 lac to the petitioner and thus she has herself committed an offence of giving dowry and therefore she could not have been treated to be having a good character for giving appointment. The petitioner submitted a memorandum of grievance representations citing the misconduct of respondent No. 4 which include the order passed by the Executive Magistrate against respondent No. 4 to maintain peace but no action has been taken by the respondent-JVVNL.

4. I have considered the submissions.

5. As the petitioner has already been divorced with respondent No. 4 and only appeal is pending before this Court, it cannot be said that the petitioner has any locus to challenge the (3 of 5) [CW-1187/2021] appointment of the respondent No.4 as he is an applicant for the post.

6. Further this Court is satisfied that the respondent No. 4 could have applied under divorcee quota after a decree of divorce has been granted, even though an appeal may have been pending before the High Court. As on today, status of the respondent would be treated as a divorcee. While it is true that under Section 15 of the Hindu Marriage Act, 1955, a person may not be allowed to re-marry during pendency of the appeal, however the same would not be an essential requirement for applying under the divorced quota, the submission of the petitioner, therefore, stands rejected.

7. As regards the contention of petitioner with regard to giving out dowry to the petitioner, it is apparent that dowry must have been given even on demand by the parents of the respondent No.4 and therefore the present respondent No.4 cannot be held to have committed the offence and the same would not constitute as sufficient to deny her appointment.

8. As regards the contention of the petitioner that he has not been provided documents under the Right to Information Act, suffice it to note that an appeal lies under the Act of 2005. Even otherwise, the information sought is of personal nature relating to any other individual, the disclosure would be barred in view of the provisions of Section 8 of the Act, which is reproduced as under:

"8. Exemption from disclosure of information.-- (1) Notwithstanding anything contained in this Act, there shall be no obligation to give any citizen,--

(a) information, disclosure of which would prejudicially affect the sovereignty and integrity of India, the security (4 of 5) [CW-1187/2021] information, disclosure of which would prejudicially affect the sovereignty and integrity of India, the security, strategic, scientific or economic interests of the State, relation with foreign State or lead to incitement of an offence;

(b) information which has been expressly forbidden to be published by any court of law or tribunal or the disclosure of which may constitute contempt of court;

(c) information, the disclosure of which would cause a breach of privilege of Parliament or the State Legislature;

(d) information including commercial confidence, trade secrets or intellectual property, the disclosure of which would harm the competitive position of a third party, unless the competent authority is satisfied that larger public interest warrants the disclosure of such information;

(e) information available to a person in his fiduciary relationship, unless the competent authority is satisfied that the larger public interest warrants the disclosure of such information;

(f) information received in confidence from foreign government;

(g) information, the disclosure of which would endanger the life or physical safety of any person or identify the source of information or assistance given in confidence for law enforcement or security purposes;

(h) information which would impede the process of investigation or apprehension or prosecution of offenders;

(i) cabinet papers including records of deliberations of the Council of Ministers, Secretaries and other officers:

Provided that the decisions of Council of Ministers, the reasons thereof, and the material on the basis of which the decisions were taken shall be made public after the decision has been taken, and the matter is complete, or over:

Provided further that those matters which come under the exemptions specified in this section shall not be disclosed;

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(j) information which relates to personal information the disclosure of which has not relationship to any public activity or interest, or which would cause unwarranted invasion of the privacy of the individual unless the Central Public Information Officer or the State Public Information Officer or the appellate authority, as the case may be, is satisfied that the larger public interest justifies the disclosure of such information:

Provided that the information, which cannot be denied to the Parliament or a State Legislature shall not be denied to any person.

(2) Notwithstanding anything in the Official Secrets Act, 1923 (19 of 1923) nor any of the exemptions permissible in accordance with sub-section (1), a public authority may allow access to information, if public interest in disclosure outweighs the harm to the protected interests.

(3) Subject to the provisions of clauses (a), (c) and (i) of sub-section (1), any information relating to any occurrence, event or matter which has taken place, occurred or happened twenty years before the date on which any request is made under section 6 shall be provided to any person making a request under that section:

Provided that where any question arises as to the date from which the said period of twenty years has to be computed, the decision of the Central Government shall be final, subject to the usual appeals provided for in this Act."

9. The writ petition is thus misconceived and the same is accordingly dismissed.

10. All pending applications also stand disposed of.

(SANJEEV PRAKASH SHARMA),J POORAN CHAND GUPTA /55 Powered by TCPDF
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